

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

August 20, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Ari Investment Cases JCCP 4811	<u>Plaintiff Lorelei Lamm's Motion for Reconsideration</u> Plaintiff Lorelei Lamm moves pursuant to Civil Procedure Code section 1008(a) for reconsideration of the court's September 6, 2024 order (ROA 2212) denying her motion for summary adjudication against defendants Chicago Title Company and Chicago Title Insurance Company (together, the "CTC Defendants"), and granting the CTC Defendants' motion for summary adjudication. For the following reasons, Lamm's motion for reconsideration is denied.

Section 1008(a) states:

"When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown."

Civ. Proc. Code § 1008(a).

As an initial matter, Lamm's motion is not accompanied by an affidavit stating what new or different facts, circumstances, or law are claimed to be shown. The Catanzarite Declaration filed in support of Lamm's motion instead sets forth a legal argument based on cases decided before September 6, 2024, and contests the CTC Defendants' arguments. ROA 2215. For this reason alone, the motion for reconsideration is denied. Lamm argues on reply that even if her motion does not comply with section 1008(a)'s requirements, the court may "reconsider its own rulings under CCP § 1008." Reply (ROA 2276) at 4:10-11. Section 1008(c) states that "[i]f a court at any time determines that there has been a change of law that warrants it to reconsider a prior order it entered, it may do so on its own motion and enter a different order." Civ. Proc. Code § 1008(c). The court does not find there has been a change of law that warrants it to reconsider the September 6, 2024 order.

Lamm has also not demonstrated any new or different facts, circumstances, or law warranting reconsideration. Lamm asserts 57 class members invested in five properties that did not involve Lamm, those class members are not similarly situated to Lamm, and therefore the court should not have granted the CTC Defendants' summary adjudication as to those 57 class members. This argument is not a new or different fact, circumstance or law warranting reconsideration of the September 6, 2024 order. It is an attempt by Lamm to evade her position at class certification, which Lamm also attempted to do in opposition to the CTC Defendants' summary adjudication motion. The court addressed this in the September 6, 2024 order. The September 6, 2024 order states:

"By order dated October 5, 2023 (ROA 1962), the court granted Lamm's motion for class certification. The court certified the following class:

'All persons who through use of an escrow with CTC Defendants acquired Tenant-In-Common Interests in one or more of the six Properties promoted by ARGUS Defendants identified in the fifth amended complaint where ARI Realty Broker received a real estate commission, estimated to be from October 16, 2002 through March 27, 2007. The six properties are the Potomac Mills Property, the

		Powers Ferry Property, the Copley Business Center Property, the Atrium Property, the Meridian Plaza Property, and the Rancho Conejo Property.’ “In her class certification motion Lamm argued, <i>inter alia</i>, there were no individual issues present, common issues predominated, Lamm’s claims were typical of the class, and a class action would be a superior means of resolving the dispute. <i>E.g.</i>, Plaintiff’s Renewed Motion for Class Certification (ROA 1906) at 7:12-13 (“[t]here are no individual issues present”). Based on the evidence and arguments presented with the class certification motion, the court granted Lamm’s motion for class certification. See 10/5/23 Order (ROA 1962) at 5 (“Plaintiff Lamm’s claims are typical of the putative class. She invested in one of the six properties (the Atrium Property) [and] is a member of the putative class”); <i>id.</i> at 6 (“Plaintiff has sufficiently demonstrated that classwide resolution of the claims has substantial benefits over individual actions. . . . [P]laintiff’s primary liability theory is capable of common resolution.”). Despite her prior arguments that “[t]here are no individual issues present,” common issues predominate, and her claims are typical of the class, Lamm now argues the CTC Defendants’ motion should be denied because the motion only addresses the Atrium Property in which Lamm invested, different facts allegedly apply to the five properties in which Lamm did not invest, and the CTC Defendants’ motion thus would not dispose of an entire cause of action. Opp. (ROA 2126) at 25. Lamm’s new argument that different facts allegedly apply to the five properties in which she did not invest (see, <i>e.g.</i>, Opp. (ROA 2126) at 19) is inconsistent with her prior arguments. In addition, Civil Procedure Code section 437c(f)(1) permits summary adjudication of “one or more issues of duty,” and summary adjudication may be granted if the motion completely disposes of an issue of duty. Cal. Civ. Proc. Code § 437c(f)(1). As discussed below, the court concludes Lamm has not shown triable issues of material fact exist regarding the duties she alleges the CTC Defendants owed her.” 9/6/24 Order (ROA 2212) at 3. Lamm’s alternative requests for orders directing notice to 57 class members “and the opportunity to become individual Plaintiffs in this action,” and “add[ing] individual Plaintiffs to the Fifth Amended Complaint’s Loan Claims,” are denied. Brief (ROA 2215) at 13:24-25, 14:7-8. Lamm has not cited any persuasive basis for such orders pursuant to section 1008(a) or other law nor has she complied with any of the requirements for seeking leave to amend a pleading. The CTC Defendants to give notice. <u>Status Conference</u> The court has reviewed the parties’ joint status conference statements filed April 16, 2026 (ROA 2295) and August 12, 2026 (ROA 2301).
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2	Clark v. Windsail Capital Group, LLC 2021-01191735	Off calendar.
3	Costello v. SHC Services, Inc. 2024-01409847	<u>Plaintiffs' Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for preliminary approval of a \$490,000 class action and PAGA settlement. Subject to plaintiffs' submission of the documents identified below, the court grants the motion as follows: \$5,000.00 to each named plaintiff (\$10,000 total; not to exceed); \$147,000.00 for attorneys' fees (not to exceed); \$40,000.00 for attorneys' costs (not to exceed); \$12,650.00 for settlement administration fees (not to exceed); and \$68,205.00 total PAGA penalties (\$51,153.75 to LWDA). Plaintiffs are ordered to file and serve <u>by August 27, 2026</u> a revised proposed order (stating the above amounts) <u>with all exhibits attached</u> (settlement agreement; amendment thereto, notice packet). The notice should be revised as follows: - In the first bullet point in section 3, the word "estimated" should be removed; - In the second bullet point in section 3, the following revisions should be made: (i) the phrase "one-third (1/3) of the Gross Settlement Amount, which is presently \$163,333" should be replaced with "\$147,000"; (ii) the second sentence ("The court preliminarily finds attorneys' fees in the reduced amount of \$147,000 reasonable for this case") should be removed; and (iii) the last sentence should be removed; and - In the third bullet point in section 3, the following revisions should be made: (i) "\$15,000" in the first sentence should be replaced with "\$5,000"; (ii) the phrase "(total not to exceed \$10,000)" should be inserted after "Plaintiffs" before "subject to"; and (iii) the last sentence should be removed. The final approval hearing is scheduled for <u>January 21, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.

4	Dubon v. Ventura Foods, LLC 2024-01377979	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$770,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$5,000.00 for enhancement award to plaintiff (not to exceed); \$231,000.00 for attorneys' fees (not to exceed); \$40,000.00 for attorneys' costs (not to exceed); \$13,850.00 for settlement administration fees (not to exceed); and \$50,000.00 total PAGA penalties (\$37,500.00 to LWDA). Plaintiff is ordered to file and serve <u>by August 27, 2026</u> a revised proposed order (stating the above amounts) <u>with all exhibits attached</u> (settlement agreement; amendments thereto, notice packet (in English and Spanish)). The proposed order should include the following paragraph: "The Maximum Settlement Amount is \$770,000. The court preliminarily approves the following deductions from the Maximum Settlement Amount: (i) attorneys' fees not to exceed \$231,000; (ii) attorneys' costs not to exceed \$40,000; (iii) an enhancement award to plaintiff not to exceed \$5,000; (iv) settlement administration fees not to exceed \$13,850; and (v) total PAGA penalties of \$50,000 (\$37,500 to the LWDA)." The notice should be revised as follows: - The first sentence of the paragraph entitled "Attorneys' Fees and Expenses" on page 3 of the notice should be removed. - At the end of the second sentence of the paragraph entitled "Attorneys' Fees and Expenses" on page 3 of the notice, the phrase "and will not exceed \$231,000" should be inserted after "Maximum Settlement Amount." - The fourth sentence of the paragraph entitled "Attorneys' Fees and Expenses" on page 3 of the notice should be removed. - In the first sentence of the paragraph entitled "Service Payment to Class Representative" on page 3 of the notice, the phrase "in the amount of" should be replaced with "not to exceed." - The portion of the paragraph entitled "Payments to Class Members" on page 3 of the notice that addresses the cy pres recipient should be revised as stated below.
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		In addition, the parties are ordered to file by August 27, 2026 a further executed amendment to the settlement agreement addressing the following issues: 1. The "Released Parties" provision in paragraph 1.40 of the amendment to the settlement agreement remains overbroad as it continues to include unrelated, unidentified and/or ambiguous third parties. The following words should be removed: "attorneys, insurers." 2. Defendant's counsel states counsel's firm has a relationship with the proposed cy pres recipient. Witt Decl. (ROA 118) ¶ 2. In addition, the parties have not demonstrated the propriety of the cy pres recipient and distribution under Civil Procedure Code section 384. The court accordingly agrees with plaintiff's alternative suggestion that any unclaimed funds be distributed to the State Controller's Office in the name of the class member/aggrieved employee. Blakeley Decl. (ROA 124) ¶ 11. The final approval hearing is scheduled for <u>February 11, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
5	Gonzalez v. Network Capital Funding Corporation 2021-01226206	Off calendar.
6	Lawson v. Executive Maintenance, Inc. 2019-01107756	<u>Plaintiff David Lawson's Motion for Attorneys' Fees</u> Plaintiff David Lawson moves for an award of attorneys' fees following the January 14, 2026 judgment (ROA 1004) entered in this matter, in which the court awarded plaintiff and the Meal Period Class \$131,917 in damages and prejudgment interest, plaintiff and the Rest Period Class \$359,015 in damages and prejudgment interest, plaintiff and the Wage Statement Subclass \$70,100 in statutory penalties, plaintiff and the Waiting Time Penalties Subclass \$76,932 in statutory penalties, and plaintiff, in his representative capacity under the California Private Attorneys General Act (PAGA) on behalf of the Labor Workforce Development Agency (LWDA) and the PAGA aggrieved employees, \$282,000 in civil penalties for meal and rest period violations. Plaintiff's counsel seeks an award of \$603,904 in attorneys' fees, based on 1,286.60 claimed hours of attorney and staff work. (Plaintiff withdraws his request for reimbursement for 42.8 hours of these hours in his reply.) Plaintiff also asks that the court add "unpaid monetary sanctions imposed on defendants Executive Maintenance, Inc., David Moltz, Patricia May, and William May, totaling \$25,488.68" to the judgment. In addition to reading and considering all papers

timely filed in support of and in opposition to the motion, the court exercised its discretion to read and consider defendants' sur-reply (Arabian Decl. (ROA 1079) Ex. B) and sur-declarations (ROA 1095). For the following reasons, plaintiff's motion is granted in part and denied in part.

Plaintiff's second amended complaint alleged nine causes of action (ROA 736), and plaintiff ultimately proceeded to trial on five of them. A court trial lasting less than eight hours was held on December 9 and 10, 2025. For the reasons set forth in the court's oral statement of decision, the court thereafter entered judgment in plaintiff's favor, as set forth above.

In addition to the trial, this litigation included numerous discovery motions and motions to enforce discovery orders, a motion for class certification and a motion for summary judgment/adjudication. The court file contains at least 10 orders compelling defendants to provide discovery and/or sanctioning them for failure to do so. ROA 58, 124, 202, 273, 396, 488, 603, 798, 824, 861. The court file also contains several orders addressing defendants' failure to provide the Class Member Data. E.g., ROA 747, 849. In addition to these orders, the court issued an order on November 3, 2022 granting plaintiff's motion for terminating sanctions and ordering defendant Executive Maintenance, Inc.'s answer stricken (ROA 273), and the court issued an order on November 21, 2024 granting plaintiff's motion for summary adjudication of defendants David Moltz, Patricia May and William May's tenth affirmative defense, in which defendants alleged they were not plaintiff's employer because they allegedly did not exercise control over plaintiff regarding the acts and omissions alleged in the complaint (ROA 695).

Defendants do not dispute that plaintiff is the prevailing party and that plaintiff is entitled to award of reasonable attorneys' fees. See, e.g., Lab. Code §§ 218.5, 2699(k)(1). Defendants' claims that their attorney allegedly did not "keep them informed about what was happening in the lawsuit" and allegedly suffered from "medical issues" throughout this long-running litigation—made in defendants David Moltz, Patricia May and William May's identical sur-declarations (ROA 1095)—does not bar plaintiff from recovering reasonable attorneys' fees as the prevailing party. In addition, defendants' new counsel's statement in counsel's unsigned sur-declaration that defendants' prior counsel did not apprise defendants of "the trial itself" (ROA 1079, ¶ 5) is belied by the fact defendants David Moltz, Patricia May and William May each testified at the trial. ROA 988, 990.

The lodestar method for calculating attorneys' fees applies to any statutory attorneys' fees award, unless the statute authorizing the award provides for another method of calculation. *Galbiso v. Orosi Pub. Util. Dist.* (2008) 167 Cal.App.4th 1063, 1089; see also *K.I. v. Wagner* (2014) 225 Cal.App.4th 1412, 1425. When determining a reasonable attorneys' fees award using the lodestar method, the court begins by deciding the reasonable hours the prevailing party's attorney spent on the case and multiplies that number by the

reasonable hourly compensation of each attorney. *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 998; *see also Environmental Protection Info. Ctr. v. California Dep't of Forestry & Fire Protection* (2010) 190 Cal.App.4th 217, 248. The court may rely on personal knowledge and familiarity with the legal market in setting a reasonable hourly rate. *Heritage Pac. Fin., LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009.

The court then has the discretion to increase or decrease the lodestar figure by applying a positive or negative multiplier based on a variety of factors that the court did not consider when determining the lodestar figure, such as the novelty and difficulty of the issues presented, the extent to which the nature of the litigation precluded other employment by the attorneys, and the contingent nature of the fee award. *See Northwest Energetic Servs., LLC v. California Franchise Tax Bd.* (2008) 159 Cal.App.4th 841, 879-82; *Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 154. The court is not required to impose a multiplier; the decision is discretionary. *Galbiso*, 167 Cal.App.4th at 1089; *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1241.

Plaintiff seeks reimbursement for work on this case by five attorneys and several senior paralegals, paralegals, law clerks and case managers. Cordero Decl. (ROA 1031) ¶ 44. The court has read and considered plaintiff's arguments and plaintiff's counsel's declaration, plaintiff's counsel's time records and other evidence, and defendants' arguments and evidentiary objections.

The court finds the following hourly rates reasonable under the circumstances of this case: Attorney Cordero, \$700 per hour; Attorney Reese, \$600 per hour; Attorney Lin, \$550 per hour; Attorney Evans, \$500 per hour; Attorney Schubert, \$500 per hour; Senior Paralegals, \$225 per hour; Paralegals, \$200 per hour; Law Clerks, \$125 per hour; and Case Managers \$100 per hour. Having reviewed and considered plaintiff's and defendants' submissions, and having presided in hundreds of wage-and-hour and PAGA cases, including many applications for awards of attorneys' fees, the court finds these hourly rates reasonable for attorneys in the community who conduct litigation of the same type and under similar circumstances as in this case.

Based on the court's review of plaintiff's counsel's time records, the court finds entries that reflect duplicative and/or excessive work, and numerous administrative and clerical tasks, and does not award fees awarded for that work. For example, plaintiff's counsel's time records reflect duplicative and excessive hours spent by multiple attorneys and other staff members writing, reviewing and conferring regarding pleadings, motion papers and discovery documents, and excessive hours spent on administrative and clerical tasks, including saving documents and emails, "calendar[ing]" meetings, and creating mailing labels.

Applying the above hourly rates and eliminating entries for duplicative and/or excessive work, the court finds the following rates and hours reasonable under the circumstances of this case:

		Attorney Cordero \$700 * 52.5 = \$36,750 Attorney Reese \$600 * 2.3 = \$1,380 Attorney Lin \$550 * 66.0 = \$36,300 Attorney Evans \$500 * 5.1 = \$2,550 Attorney Schubert \$500 * 447.2 = \$223,600 Senior Paralegals \$225 * 83.0 = \$18,675 Paralegals \$200 * 197.0 = \$39,400 Law Clerks \$125 * 107.5 = \$13,437.50 Case Managers \$100 * 5.1 = \$510 Total: \$372,602.50 Plaintiff is awarded \$372,602.50 in attorneys' fees. Plaintiff's request that the court add "unpaid monetary sanctions imposed on defendants Executive Maintenance, Inc., David Moltz, Patricia May, and William May, totaling \$25,488.68" to the judgment is denied. A court order awarding monetary sanctions is immediately enforceable through the execution of judgment laws. See, e.g., Cal. Civ. Proc. Code §§ 680.230, 680.270 & 699.510; <i>Newland v. Superior Court</i> (1995) 40 Cal.App.4th 608, 615. Plaintiff provides no persuasive explanation why unpaid monetary sanctions should be added to the judgment when orders issuing monetary sanctions are immediately enforceable through the execution of judgment laws. Plaintiff's notice of motion states that plaintiff also seeks "actual litigation costs as outlined in Plaintiff's memorandum of costs previously filed with this Court" (Notice of Motion (ROA 1036) at 2:6-7), but plaintiff does not address this request in his brief (ROA 1027), his counsel's declaration (ROA 1031) or his proposed order (ROA 1025). In his reply, plaintiff states that "[h]e only seeks attorneys' fees through this motion, while the litigation costs are sought through Plaintiff's Memorandum of Costs, filed February 5, 2026." Reply (ROA 1067) at 9:18-19. As the instant motion does not address costs, and as plaintiff states he does not seek costs with this motion, the court need not address them here. Defendants' Evidentiary Objections Nos. 1 through 21 (ROA 1063) to the Cordero Declaration are overruled or were not material to the disposition of the motion. Plaintiff to give notice.
7	Martinez v. Brewery X 2023-01370101	Off calendar.
8	Nguyen v. Baxter Healthcare Corporation	<u>Plaintiffs' Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for

	2023-01358073	an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government.” <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review “to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.” <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiffs’ motion for approval of a \$420,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The parties should provide the estimated high and low individual PAGA payments. 2. The PAGA Period needs a firm end date to enable the court to evaluate the fairness and reasonableness of the settlement. Settlement Agreement ¶ I.11. 3. The word “Complaint” in paragraph I.12 should be replaced with “First Amended Complaint.” 4. The “Released Parties” provision in paragraph I.17 is overbroad as it includes unrelated, unidentified and/or ambiguous third parties, such as “affiliates” and “any and all of their agents, employees, officers, directors, and attorneys.” Those terms should be removed. 5. Paragraph III.2 should state which defendant will fund the settlement or state the funding allocation between defendants. 6. The court will not approve a settlement that permits defendants to shorten the PAGA Period. Paragraph III.3 should be revised accordingly. 7. The phrase “relate to or” in paragraph III.6 should be removed in two places as it renders the PAGA release overbroad. 8. Paragraph V.18 should be revised to state that the prevailing party attorneys’ fees and costs provision in that paragraph will not be enforced against unnamed aggrieved employees. 9. Plaintiffs’ counsel seeks \$140,000 in attorneys’ fees (33 1/3% of the gross settlement amount). Absent unique circumstances, the court is unlikely to approve attorneys’ fees in excess of 30% of the gross settlement amount. Plaintiffs’ counsel should address in the supplemental filing whether any such unique circumstances exist here. 10. The “Summary Report” submitted by Attorney Otkupman (Otkupman Decl. (ROA 167) Ex. 2) is insufficient as the
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		document does not state each task performed or the date(s) on which the work was performed. 11. Plaintiffs’ counsel must submit invoices substantiating the mediation and expert charges. Sung Decl. (ROA 169) Ex. 5; Otkupman Decl. (ROA 167) Ex. 3. 12. Plaintiffs each seek a \$5,000 enhancement award. Plaintiffs’ counsel states each plaintiff has entered into an individual \$15,000 settlement. Sung Decl. ¶ 19. The court is not inclined to award plaintiffs enhancement awards for this case. <u>As to the notice:</u> 13. The notice should be revised as necessary consistent with the above. 14. The acronym “PAGA” should be inserted before “Settlement” in the title of the document and before “settlement” in the first sentence of the notice letter. 15. The notice letter should (i) provide an explanation of PAGA; (ii) describe the factual allegations of the operative complaint; (iii) state the effective date of the release; (iv) identify the released parties; (v) state the gross settlement amount, net settlement amount, and the portions allocated to the LWDA and the aggrieved employees; (vi) explain how the individual payments will be calculated; (vii) describe the recipient’s responsibility for any taxes payable on the amount received; and (viii) notify the aggrieved employees that they cannot opt out of the settlement and that, even if they do not cash their checks, they will be bound by the release. 16. Will the settlement administrator maintain a website for this case? If so, the notice letter should provide the URL for case website maintained by the settlement administrator and identify the key case documents (including the order and judgment) that will be posted on the website, and should state that judgment will be posted on the settlement administrator’s website for at least 180 days. 17. The settlement agreement states the notice letter will be translated into Spanish. Settlement Agreement ¶ IV.3. If the notice letter will be translated into Spanish, a certified copy of the translation should be attached as an exhibit to the proposed order and judgment. <u>As to the proposed order and judgment (ROA 177):</u> 18. The proposed order and judgment should be revised consistent with the above. 19. The settlement agreement and any amendments thereto should be attached as exhibits to the proposed order and judgment (along with the notice letter in all languages).
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		Paragraph 1 of the proposed order and judgment should be revised accordingly. 20. The proposed order and judgment should state that the court finds the settlement to be fair, reasonable, and adequate and in the best interests of the aggrieved employees. 21. Subsections (a) through (e) on page 3 should be replaced with paragraph numbers. 22. The word "Complaint" in subsection (e) on page 3 should be replaced with "First Amended Complaint." 23. The proposed order and judgment should state that the court orders the parties, their counsel and the settlement administrator to administer the settlement in accordance with the terms of the settlement agreement. 24. Paragraph 13 should be revised to stated that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The court holds final accounting hearings on Thursdays at 9:00 a.m. (not 2:00 p.m.). The hearing on plaintiffs' motion for approval of PAGA settlement is continued to <u>January 14, 2027 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiffs are ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiffs must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
9	Fischer v. Kelly Services Global, LLC 2023-01304927	<u>ADR Review Hearing in Case No. 2023-01304927 (Fischer v. Kelly Services Global, LLC)</u> The court has reviewed the parties' joint ADR Review hearing statement filed August 13, 2026 (ROA 137). The request to continue the August 20, 2026 ADR Review hearing is denied. The ADR Review hearing scheduled for August 20, 2026 at 2:00 p.m. in Department CX105 remains on calendar.

10	Palacios Mundo v. Softscapes the Art of Landscape 2021-01220116	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$212,500 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$5,000.00 for enhancement award to plaintiff (not to exceed); \$63,750.00 for attorneys' fees (not to exceed); \$20,000.00 for attorneys' costs (not to exceed); \$8,750.00 for settlement administration fees (not to exceed); and \$10,625.00 total PAGA penalties (\$7,968.75 to LWDA). Plaintiff is ordered to file and serve <u>by August 27, 2026</u> a revised proposed order (stating the above amounts) <u>with all exhibits attached</u> (settlement agreement; amendments thereto, notice packet (<u>in all necessary languages</u>)). The parties are also ordered to file by August 27, 2026 a further amendment to the settlement agreement addressing the following issue: 1. The court has twice ordered the parties to remove the overbroad and ambiguous term "agents" from the Released Parties provision in paragraph 1.41. ROA 139, 167. The "Released Parties" provision in the second amendment to the settlement agreement continues to include that term. The parties are ordered to file by August 27, 2026 a further amendment to the settlement agreement removing the term "agents" from the Released Parties provision in paragraph 1.41. In addition, the notice should be revised as follows: 2. The definition of "Released Parties" in the notice should be revised as stated above. 3. In the section entitled "Summary of the Settlement Terms," subsection (3) should be replaced with the following: "attorneys' fees not to exceed \$63,750.00." The final approval hearing is scheduled for <u>January 14, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
11	Perdomo v. Western Residential, Inc. 2024-01375618	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of a \$500,000 class

action and PAGA settlement. The court has the following questions and comments:

As to the settlement:

1. Does plaintiff anticipate receiving any compensation for any individual claims?
2. Plaintiff dismissed defendant UDR, Inc. on May 23, 2024 (ROA 39). Why is UDR, Inc. a party to the settlement agreement?
3. The "Released Class Claims" provision in paragraph 28 is overbroad. The release of the class members' claims must be fairly tailored to the claims that were or reasonably could have been asserted in the lawsuit based on the facts alleged in the operative complaint. The following phrases should be removed: (i) "rights, demands, liabilities and causes of action"; (ii) "same or similar"; and (iii) all text including and following the phrase "including the following claims," other than the last sentence of paragraph 28. In addition, the phrase "and claims asserted" should be replaced with "stated."
4. Paragraph 29 is inconsistent with paragraph 67. In the "Released PAGA Claims" provision in paragraph 29, the phrase "for civil penalties" should be inserted after "all PAGA claims" and before "that could have been asserted." The following phrases should be removed: (i) "same or similar"; and (ii) "and claims."
5. The "Released Parties" provision in paragraph 30 of the settlement agreement is overbroad as it includes unrelated, unidentified and/or ambiguous third parties such as "direct or indirect parents, sister or related entities, acquired companies," "affiliates," and "each of its or their past, present and future owners, officers, directors, employees, partners, members, shareholders and agents, attorneys, insurers, reinsurers, heir [sic], representatives, accountants, auditors, consultants, and any individual or entity which could be jointly liable with Defendants." In addition, why are United Dominion Realty, L.P., UDR California GP, LLC, UDR California GP II, LLC and Eastern Residential, Inc. appropriately included in the release?
6. Plaintiff's counsel seeks costs not to exceed \$25,000. Plaintiff's counsel should provide an itemized list of costs incurred to date. Nonrecoverable items such as postage, mailing and legal research charges should not be included.
7. Plaintiff seeks an enhancement award of \$10,000. The settlement agreement states the enhancement award "is in exchange for the General Release of Plaintiff's individual claims and for his time, effort, and risk in

		bringing and prosecuting the Action.” Settlement Agreement ¶ 43. An enhancement award is not intended to serve as consideration for the release of additional claims, but rather to compensate class representatives for work done on behalf of the class, to make up for financial or reputational risk undertaken in bringing the action, and, in some circumstances, to recognize their willingness to act as a private attorney general. The court is unlikely to approve a settlement that provides an enhancement award in exchange for a general release. 8. The last two sentences of paragraph 54 should be revised to state: (i) the parties shall file with the court all disputes submitted by class members, the evidence submitted, and the resolution of the disputes, and (ii) although the settlement administrator may make the initial decision regarding claim disputes, the court may review any decision made by the settlement administrator regarding a claim dispute. 9. Paragraph 89 should be revised to state that the prevailing party attorneys’ fees and costs provision in that paragraph will not be enforced against unnamed class members and/or unnamed aggrieved employees. <u>As to the notice:</u> 10. The notice should be revised consistent with the above. 11. The phrase “AND PAGA” should be inserted after “CLASS ACTION” in the title of the notice. 12. The second sentence of the first paragraph of section 5 should be removed. 13. In section 5(A), the following phrase should be removed: “30% of the Gross Settlement Amount or.” 14. In section 5(C), the following phrase should be removed: “in an amount.” In addition, as stated above, the court is unlikely to approve a settlement that provides an enhancement award in exchange for a general release. 15. In section 5(D), the following phrase should be removed: “in an amount.” 16. In the third sentence of the first paragraph of section 12, the word “must” should be replaced with “may.” The following phrase should be inserted at the end of the same sentence: “or appear at the Final Approval Hearing.” 17. Section 18 should state that the settlement administrator will post all key documents on its website, including the operative complaint, the settlement agreement and any amendments, the class notice and any included forms, the orders granting preliminary and final approval, and
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		the judgment. The judgment should be posted for at least 180 days. 18. The following statement should be removed from the top of the exclusion form as it is redundant of other information on the form: "IF YOU COMPLETE THIS FORM YOU WILL NOT RECEIVE YOUR SHARE OF [THE] CLASS SETTLEMENT BENEFITS UNDER THE SETTLEMENT." 19. In the first sentence of the bolded paragraph above the "Employee Name" line on the exclusion form, the word "class" should be inserted after "the" and before "settlement." 20. The third sentence of the first paragraph of the objection form should be removed. 21. The following phrase should be removed from the first sentence of the second paragraph of the objection form: "if you submit a timely and valid written statement of objection." 22. The second and third sentences of the second paragraph of the objection form should be removed. 23. The settlement administrator's invoice includes a charge for a Spanish-language translation of the notice packet. Hartranft Decl. (ROA 92) Ex. B. Should the notice be provided in Spanish (or any other languages)? If so, a certified copy of the translated notice should be attached to the proposed order as an exhibit. <u>As to the proposed order (ROA 104):</u> 24. The proposed order should be revised consistent with the above. 25. The settlement agreement, any amendment(s) thereto, and the notice packet (in all languages) should be attached to the proposed order as exhibits. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>January 14, 2027 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.
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12	Sanchez v. Orthowest MSO, LLC 2024-01423708	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$935,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$2,500.00 for enhancement award to plaintiff (not to exceed); \$280,500.00 for attorneys' fees (not to exceed); \$25,000.00 for attorneys' costs (not to exceed); \$10,500.00 for settlement administration fees (not to exceed); and \$90,000.00 total PAGA penalties (\$58,500.00 to LWDA). Plaintiff is ordered to file and serve <u>by August 27, 2026</u> a revised proposed order (stating the above amounts) <u>with all exhibits attached</u> (settlement agreement; amendments thereto; notice packet (in English and Spanish)). The notice and its attached forms should be revised as follows: - In the fifth bullet point in section 3, the following phrase should be removed: "30% of the Gross Settlement Amount." The parentheses around "\$280,500.00" should also be removed; - The first sentence in the exclusion form (under "REQUEST FOR EXCLUSION FORM") should be removed; - The methods of submitting the exclusion form stated on the form are inconsistent with the settlement agreement and the notice and should be revised; - The first sentence in the objection form (under "OBJECTION FORM") should be removed; and - The methods of submitting the objection form stated on the form are inconsistent with the settlement agreement and the notice and should be revised. The final approval hearing is scheduled for <u>January 21, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
13	Uroza v. Niki Investments, Inc. 2025-01523955	Off calendar.

14	Valdivia v. Action Resource Management, Inc. 2023-01361792	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$75,348 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$2,500.00 for enhancement award to plaintiff (not to exceed); \$22,604.00 for attorneys' fees (not to exceed); \$12,000.00 for attorneys' costs (not to exceed); \$6,400.00 for settlement administration fees (not to exceed); and \$5,000.00 total PAGA penalties (\$3,750.00 to LWDA). Plaintiff is ordered to file and serve <u>by August 27, 2026</u> a revised proposed order (stating the above amounts) <u>with all exhibits attached</u> (settlement agreement; amendments thereto, notice packet (in English and Spanish)). The notice and objection form should be revised as follows: - The second paragraph on page 1 of the notice (commencing with "Pursuant to the Order . . .") should be removed; - In the first sentence of the fifth paragraph on page 1 of the notice, a period should be inserted after "p" in "2:00 p.m."; - In the first sentence of the second paragraph of section II of the notice, the word "denies" should be replaced with "deny"; - In the first sentence of the first paragraph of section III of the notice, the word "Class" should be removed after "the" and before "Settlement"; - In the last sentence of the third paragraph of section III of the notice the phrase "and/or pay periods" should be inserted after "workweeks" and before "for which"; - In the first sentence of the third paragraph of the notice under "Option 3" on page 4, the word "either" should be removed after "by" and before "mail"; - The fourth paragraph of the notice under "Option 3" (the one-sentence paragraph) should be removed; - In the first full sentence in the partial paragraph at the top of page 5 of the notice, the word "Complaint" should be removed after "Plaintiff's" and before "letter"; - In the bolded, all caps sentence at the top of the objection form, the following words should be removed: (i) "OR DELIVER" and (ii) "BACK"; and
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		j. In the last paragraph of the objection form above the class member's name line, the word "Fairness" should be replaced with "Approval." The final approval hearing is scheduled for <u>January 14, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
15 2:30 p.m.	Davis v. Insight Psychology and Addiction, Inc. 2023-01319920	<u>Attorneys Mollie M. Burks, Sat Sang S. Khalsa and Gordon Rees Scully Mansukhani LLP's Motion to be Relieved as Counsel</u> Attorneys Mollie M. Burks, Sat Sang S. Khalsa and Gordon Rees Scully Mansukhani LLP move to be relieved as counsel for defendant Insight Psychology and Addiction, Inc d/b/a Nsight Psychology & Addiction and/or Nsight Mental Health & Wellness. California Rule of Court 3.1362 governs motions to be relieved as counsel. The court has reviewed the materials submitted by the moving parties and finds that Mollie M. Burks, Sat Sang S. Khalsa and Gordon Rees Scully Mansukhani LLP have complied with the requirements of Rule 3.1362. The motion to be relieved as counsel is granted. The court's order shall become effective upon the filing of a proof of service showing service of the order on defendant Insight Psychology and Addiction, Inc d/b/a Nsight Psychology & Addiction and/or Nsight Mental Health & Wellness. Defendant Insight Psychology and Addiction, Inc d/b/a Nsight Psychology & Addiction and/or Nsight Mental Health & Wellness is a corporation. This entity cannot represent itself. <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284 n.5. Defendant Insight Psychology and Addiction, Inc d/b/a Nsight Psychology & Addiction and/or Nsight Mental Health & Wellness must obtain representation or risk forfeiting important rights through nonrepresentation. <i>Id.</i> Defendant Insight Psychology and Addiction, Inc d/b/a Nsight Psychology & Addiction and/or Nsight Mental Health & Wellness is ordered to obtain counsel and file evidence thereof with the court by September 24, 2026. The moving parties, Attorneys Mollie M. Burks, Sat Sang S. Khalsa and Gordon Rees Scully Mansukhani LLP, shall give notice of the court's order.